

INDUSTRIAL EQUIPMENT MAINTENANCE AGREEMENT

between

Ferro Industrial Maintenance Services LLC (“Vendor”)

and

Bramwell Steelworks Inc. (“Customer”)

This Industrial Equipment Maintenance Agreement (this “Agreement”) is entered into and effective as of November 5, 2023 (the “Effective Date”) by and between Ferro Industrial Maintenance Services LLC, an Ohio limited liability company with its principal place of business at 1200 Foundry Road, Cleveland, Ohio 44113 (“Vendor”), and Bramwell Steelworks Inc., an Ohio corporation with its principal place of business at 40 Mill Street, Youngstown, Ohio 44501 (“Customer”), each a “Party” and together the “Parties.”

RECITALS. Vendor provides preventive and emergency maintenance services for industrial manufacturing equipment, and Customer wishes to engage Vendor to maintain the equipment at its Youngstown facility on the terms below.

1. TERM

1.1 Initial Term. This Agreement commences on the Effective Date and continues for a fixed term of three (3) years, expiring on November 5, 2026 (the “Term”), unless terminated earlier under Section 8. This Agreement does not renew automatically; a new agreement must be signed for maintenance services to continue beyond the Term.

2. SERVICES; MINIMUM COMMITMENT

2.1 Vendor shall provide preventive maintenance, inspection, and emergency repair services for the equipment listed in Schedule A.

2.2 Minimum Commitment. Vendor shall perform a minimum of twenty-four (24) scheduled preventive-maintenance visits per year.

3. FEES AND PAYMENT

3.1 Fees. Customer shall pay Vendor a fixed annual maintenance fee of one hundred eighty thousand dollars (\$180,000), invoiced quarterly in advance. The aggregate value of this Agreement over the three (3)-year Term is five hundred forty thousand dollars (\$540,000).

3.2 Payment Terms. Customer shall pay each undisputed invoice within thirty (30) days of the invoice date.

3.3 Pricing Model. Services are provided for a fixed annual fee; the fee does not increase during the Term.

4. SERVICE LEVELS

4.1 Vendor shall respond to an emergency callout within four (4) hours of notification.

4.2 Vendor shall use commercially reasonable efforts to maintain equipment uptime of at least ninety-eight percent (98%). If Vendor fails to meet the four-hour response target more than twice in a calendar quarter, Customer shall be entitled to a service credit of 5% of that quarter's fees.

5. LIMITATION OF LIABILITY

5.1 Except for liabilities arising from a Party's breach of confidentiality or indemnification obligations, each Party's total aggregate liability arising out of this Agreement shall not exceed seven hundred fifty thousand dollars (\$750,000).

6. INDEMNIFICATION

6.1 Vendor shall defend, indemnify, and hold harmless Customer from third-party claims for property damage or bodily injury arising out of Vendor's negligence in performing the Services.

7. INSURANCE

7.1 Throughout the Term, Vendor shall maintain Commercial General Liability insurance of not less than \$2,000,000 per occurrence and statutory Workers' Compensation and Employer's Liability insurance as required under Ohio law.

8. TERMINATION

8.1 Termination for Cause. Either Party may terminate this Agreement immediately upon written notice if the other Party commits a material breach and fails to cure it within thirty (30) days of notice. There is no right to terminate this Agreement for convenience prior to expiry of the Term.

9. CHANGE OF CONTROL; ASSIGNMENT

9.1 Neither Party may assign this Agreement without the other Party's prior written consent, except in connection with a merger, acquisition, or sale of substantially all of its assets.

10. GOVERNING LAW

10.1 This Agreement is governed by, and shall be construed in accordance with, the laws of the State of Ohio, without regard to its conflict-of-laws principles. The state and federal courts located in Cuyahoga County, Ohio shall have exclusive jurisdiction over any dispute arising out of this Agreement.

11. GENERAL PROVISIONS

11.1 Entire Agreement. This Agreement, together with its Schedules, constitutes the entire agreement between the Parties with respect to its subject matter.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

For and on behalf of
**FERRO INDUSTRIAL MAINTENANCE
SERVICES LLC**

Signature: _____

Name: Carlos Medina

Title: General Manager

Date: November 5, 2023

For and on behalf of
BRAMWELL STEELWORKS INC.

Signature: _____

Name: Susan Bramwell

Title: Plant Director

Date: November 5, 2023